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February 25, 2025

By: Stewart

An Act relating to assault and battery; defining term; creating misdemeanor and felony offenses; providing for penalties; requiring certain signage; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 650.12 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. As used in this section, "county employee" means any person employed by a county, including any duly appointed person, or an employee of a firm contracting with a county.

B. Any person who, without justifiable or excusable cause, commits any assault, battery, or assault and battery upon the person of a county employee while such employee is in the performance of his or her duties shall, upon conviction, be guilty of a misdemeanor punishable by imprisonment in the county jail for a period not to exceed one (1) year, a fine not to exceed One Thousand Dollars (\$1,000.00), or by both such imprisonment and fine.

1 C. Any person who, without justifiable or excusable cause,
2 commits any aggravated battery or aggravated assault and battery
3 upon the person of a county employee shall, upon conviction, be
4 guilty of a felony punishable by imprisonment in the custody of the
5 Department of Corrections for a term not to exceed two (2) years, a
6 fine not to exceed Five Thousand Dollars (\$5,000.00), or by both
7 such imprisonment and fine.

8 D. Every county site shall post in a prominent place a notice
9 having the following or similar language: "FELONY CHARGES MAY BE
10 FILED AGAINST ANY PERSON(S) COMMITTING AN AGGRAVATED ASSAULT OR
11 BATTERY UPON ANY COUNTY EMPLOYEE."

12 SECTION 2. This act shall become effective November 1, 2025.
13 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
14 February 25, 2025 - DO PASS
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